

		(2007) 148 Cal.App.4th 390, 402 [central precept of Discovery Act that discovery be self-executing].) The parties did not meaningfully meet and confer prior to Plaintiff filing amended motions. The parties/counsel are ORDERED to engage in additional attempts to meet and confer, in person, telephonically, or over remote videoconferences (not email), to resolve these disputes informally, or to narrow the scope of the dispute. If Defendants agree to serve further responses, Defendants shall serve verified further responses no later than nine court days before the hearing. The parties/counsel are ORDERED to file a JOINT STATUS REPORT, indicating whether court intervention remains the only option to resolve this discovery dispute and, if so, which responses remain at issue, no later than five court days before the hearing.
2	Flores v. General Motors, LLC 2024-01397024 Motion for Summary Judgment/Adjudication	Defendant General Motors LLC's Motion for Summary Judgment or, Alternatively, for Summary Adjudication is GRANTED. Plaintiffs' written objections (ROA 100) are OVERRULED. Plaintiffs' request for a continuance is DENIED. To be entitled to a mandatory continuance under Code Civ. Proc. §437c, subdivision (h), an opposing party's declaration in support of a motion to continue the summary judgment hearing should show the following: (1) facts establishing a likelihood that controverting evidence may exist and why the information sought is essential to opposing the motion; (2) the specific reasons why such evidence cannot be presented at the present time; (3) an estimate of the time necessary to obtain such evidence; and (4) the specific steps or procedures the opposing party intends to utilize to obtain such evidence. (<i>Johnson v. Alameda County Med. Ctr.</i> (2012) 205 Cal.App.4th 521, 532 (<i>Johnson</i>).) Plaintiffs request a continuance for 60 days in order to depose GM's Person Most Qualified ("PMQ"). Plaintiffs contend they have made multiple attempts to schedule a deposition of both Defendants' respective PMQs, but neither Defendant has produced their witness. Plaintiffs contend Defendants have deprived them of the opportunity to elicit information that could lead to more disputes of material fact. Plaintiffs failed to file a declaration in support of their request for a continuance. Plaintiffs also failed to establish good cause since no special circumstances are presented here.

While Plaintiffs contend they attempted to schedule the PMQ depositions, they never filed a motion to compel the depositions. Plaintiffs' failure to enforce their discovery rights shows a lack a diligence not special circumstances that prevented the completion of discovery.

Further, Plaintiffs' vague assertions that the depositions could lead to disputes of material facts do not establish good cause. Accordingly, Plaintiffs are not entitled to either a mandatory continuance under section 437c, subdivision (h) or a discretionary continuance.

Second Cause of Action – Breach Express Warranty under the SBA

For breach of express warranty claims concerning "new motor vehicles," the commonly called "refund-or-replace" remedy requires an automobile manufacturer or other original warrantor who does not repair a "new motor vehicle" to conform to an express warranty within a reasonable number of attempts to promptly replace the vehicle or make restitution to the buyer. (Civ. Code § 1793.2, subd. (d)(2).) The SBA's definition of "new motor vehicle" includes "a dealer-owned vehicle and a 'demonstrator' or other motor vehicle sold with a manufacturer's new car warranty." (Cal. Civ. Code § 1793.22, subd. (e)(2).) The California Supreme Court recently clarified "that a motor vehicle purchased with an unexpired manufacturer's new car warranty does not qualify as a 'motor vehicle sold with a manufacturer's new car warranty' under section 1793.22, subdivision (e)(2)'s definition of 'new motor vehicle' unless the new car warranty was *issued with the sale*." (*Rodriguez, supra*, 17 Cal.5th at pp. 196, 206 [emphasis added].)

Plaintiffs purchased the Vehicle used from Hertz on 4/7/2017, with 34,105 miles on the odometer. GM was not a party to that transaction between Plaintiffs and Hertz. Plaintiffs were not the Vehicle's original owners. Dublin Buick GMC delivered the Vehicle to its original owner(s) on 2/13/2016 with 9 miles on its odometer. With that transaction delivering the Vehicle to the original owner(s), GM issued a New Vehicle Limited Warranty (the Warranty) with (i) bumper-to-bumper coverage for the earlier of 36 months or 36,000 miles and (ii) powertrain coverage for the earlier of 60 months or 60,000 miles. The Warranty's coverages began when Dublin Buick GMC delivered the Vehicle to its original owner(s), on February 13, 2016. When Plaintiffs purchased the Vehicle, GM did not issue or provide any new or additional warranty coverage to Plaintiffs or the Vehicle. Instead, Plaintiffs

	received only the balance of the coverage remaining under the Warranty. GM's material facts establish the SBA does not apply to the Vehicle because Plaintiffs purchased it used with only a portion of GM's Warranty remaining. (See <i>Rodriguez, supra</i>, 17 Cal.5th 189.) GM has therefore met its initial burden. Plaintiffs purport to dispute most of GM's material facts. "An opposing party who contends that a fact is disputed must state, on the right side of the page directly opposite the fact in dispute, the nature of the dispute and describe the evidence that supports the position that the fact is controverted." (Cal. Rules of Court, rule 3.1350(f)(2).) Plaintiffs fail to do so. Instead, Plaintiffs state their dispute on the left side of the page rather than the right. Plaintiffs also fail to cite evidence showing the facts are controverted. More importantly, many of Plaintiffs' contentions do not dispute the material facts asserted. For example, Plaintiffs purport to dispute UMF 2, which states: "Plaintiffs did not buy the Yukon new; Plaintiffs bought the Yukon used from The Hertz Corporation, on April 7, 2017, with 34,105 miles on the odometer." Plaintiffs respond "Disputed. Defendant's statement that the vehicle was 'used' is conclusory and contradicted by the fact that the vehicle was issued with 'new vehicle warranties' when purchased by Plaintiff per <i>Jensen v. BMWNA of North America, Inc.</i>, 35 Cal. App. 4th 112, 41 Cal. Rptr. 2d 298, 309 (Ct. App. 1995), which was in effect at the time of filing of this action." This response does not refute the facts stated. Instead, it merely asserts incorrect legal argument. Plaintiffs argue <i>Rodriguez</i> should not apply retroactively; instead, the Court should follow <i>Jensen v. BMWNA of North America, Inc.</i>, 35 Cal. App. 4th 112, 123 (holding the phrase "other motor vehicle sold with a manufacturer's new car warranty" in section 1793.22, subdivision (e)(2) covers "cars sold with a balance remaining on the manufacturer's new motor vehicle warranty"), which was in effect when this action was filed. Plaintiffs' argument lacks merit. First, judicial decisions interpreting legislative measures generally apply retroactively. (<i>Vazquez v. Jan-Pro Franchising Intern., Inc.</i> (2021) 10 Cal.5th 944, 952; <i>Waller v. Truck Ins. Exchange, Inc.</i> (1995) 11 Cal.4th 1, 24.) Second, the California Supreme Court examined the holding in <i>Jensen</i> and expressly disapproved it to the extent it was inconsistent with the <i>Rodriguez</i> opinion. (<i>Rodriguez, supra</i>, 17 Cal.5th at 204-205.)
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Thus, the second cause of action fails as a matter of law.

First Cause of Action – Breach Implied Warranty under the SBA

Plaintiffs’ first cause of action for breach of implied warranty also fails as a matter of law. Under the SBA, “every sale of consumer goods that are sold at retail in the state shall be accompanied by the manufacturer’s and the retail seller’s implied warranty that the goods are merchantable.” (Civ. Code, § 1792.) “‘Implied warranty of merchantability’ . . . means that the consumer goods meet each of the following: (1) [p]ass without objection in the trade under the contract description[;] (2) [a]re fit for the ordinary purpose for which such goods are used[;] (3) [a]re adequately contained, packaged, and labeled[;] and (4) [c]onform to the promises or affirmations of fact made on the container or label.” (Civ. Code, § 1791.1, subd. (a).) As mentioned above, “consumer goods” are defined as “any *new product* or part thereof” (Civ. Code § 1791, subd. (a) [emphasis added].) The implied warranties under the SBA, however, do not apply to manufacturers with respect to the sale of used goods. (See Civ. Code, § 1795.5; *Nunez v. FCA US LLC* (2021) 61 Cal. App. 5th 385, 399 [analyzing Civ. Code § 1795.5 and concluding: “It is evident from these provisions that only distributors or sellers of used goods—not manufacturers of new goods—have implied warranty obligations in the sale of used goods”] [emphasis added].) Simply put, “only distributors and retail sellers, *not manufacturers*, are liable for breach of implied warranties in the sale of a used car.” (*Nunez*, *supra*, 61 Cal. App. 5th at p. 399 [emphasis added].)

Here, because Plaintiffs purchased the Vehicle used and there is “no evidence that [GM] was a distributor or retail seller of [the used Vehicle] or in any way acted as such,” the breach of implied warranty claim fails as a matter of law. (*Nunez*, *supra*, 61 Cal.App.5th at p. 399.

Plaintiffs do not expressly address the first cause of action.

Thus, the first cause of action fails as a matter of law.

Third and Fourth Causes of Action – Breach of Express and Implied Warranty under MMWA

The MMWA establishes a federal cause of action for breach of a written or an implied warranty. (15 U.S.C. § 2310, subd. (d).) The MMWA calls for the application of state warranty law, not the creation of additional federal law, except in specific instances where the MMWA expressly prescribes a regulating rule. (*Daugherty v. American Honda Motor Co.*,

		<i>Inc.</i> (2006) 144 Cal.App.4th 824, 832–33, citing <i>Walsh v. Ford Motor Co.</i> (D.C.Cir.1986) 807 F.2d 1000, 1012.) Claims under the MMWA “stand or fall” with express and implied warranty claims under state law. (<i>Clemens v. DaimlerChrysler Corp.</i> (9th Cir. 2008) 534 F.3d 1017, 1022 [the plaintiff’s lack of privity under California law doomed his MMWA warranty claims]; <i>Daugherty v. American Honda Motor Co., Inc.</i> (2006) 144 Cal.App.4th 824, 832-833 [sustaining demurrer to MMWA cause of action because plaintiffs failed to plead a state-law warranty violation]; <i>West v. Rheem Manufacturing Company</i> (C.D. Cal. 2025) 765 F.Supp.3d 976, 990 [finding dismissal of MMWA cause of action warranted due to dismissal of state-law express and implied warranty claims].) Plaintiffs argue they can seek SBA remedies through the MMWA because the SBA remedies are severable from the SBA’s substantive rights. However, Plaintiffs’ cited authorities are distinguishable and unpersuasive for the reasons stated in GM’s reply. Plaintiffs contend these causes of action are based on the California Uniform Commercial Code (“UCC”). However, the FAC does not allege any UCC causes of action. “[T]he pleadings set the boundaries of the issues to be resolved at summary judgment. A plaintiff cannot bring up new, unpleaded issues in his or her opposing papers. (<i>Oakland Raiders v. National Football League</i> (2005) 131 Cal.App.4th 621, 648.) “It would be patently unfair to allow plaintiffs to defeat the summary judgment motion by allowing them to present a moving target unbounded by the pleadings.” (<i>Champlin/GEI Wind Holdings, LLC v. Avery</i> (2023) 92 Cal.App.5th 218, 224. The Court notes it granted Plaintiffs’ motion for leave to amend on 1/26/26, which only sought to add the two MMWA causes of action. (ROA 75.) Plaintiffs did not seek leave to add UCC causes of action. Therefore, because Plaintiffs’ SBA causes of action fail, their MMWA causes of action fail for the same reasons. The motion for summary judgment is GRANTED.
4	Plummer v. Norred 2025-01502837 Demurrer to 1st Amended Complaint	The general demurrer of defendant Mark W. Norred, CPA, to both causes of action in the first amended complaint of plaintiffs Law Offices of Mark B. Plummer, Mark Plummer, and Jocelyn Plummer is OVERRULED.